

RESTRICTED (when complete)

MG11C

WITNESS STATEMENT

Criminal Procedure Rules, r 27. 2; Criminal Justice Act 1967, s. 9; Magistrates' Courts Act 1980, s.5B

URN

Statement of: PC Mark Lynch 2246AS

Age if under 18: Over 18 (if over 18 insert 'over 18') Occupation: Police Officer

This statement (consisting of 2 page(s) each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false, or do not believe to be true.

Witness Signature: Date: 02/11/2025

I have been a Police Officer for 20years to which the last 7years I have been attached to the Southwark Police Licensing and Night time economy team in the role of licensing officer. This statement is made in regards to a Premises inspection of the venue called Kent Restaurant and Lounge Ltd First Floor 516 Old Kent road SE1 5BA .

On Saturday 01st November 2025 I was on duty in plain clothes I was in the company of Pc Walter Minka Agyeman who was driving our unmarked police vehicle. At 2035hrs we were driving southbound along The Old Kent Road towards New Cross, when we passed the venue called Kent Restaurant and Lounge Ltd First Floor 516 Old Kent road SE1 5BA . At this time I noticed a number of teenagers loitering in the forecourt area of the venue which I thought was strange as the venue was meant to be operating as a restaurant and domino club and was in the process of applying for a late night premises licence for the supply of alcohol, late night refreshment and regulated entertainment. We continued to carry out our tasking and whilst doing this I carried out a check using the Southwark council licence register and confirmed that there was no temporary event notice in use at the venue. We completed our tasking and returned to Kent Restaurant and Lounge Ltd.

We parked our car nearby and walked towards the venue, as we drew closer it was clear that some kind of Halloween event was taking place, we walked onto the forecourt at 2054hrs and were meet by a black male, F506, stocky build, who was wearing a long padded jacket, dark trousers and baseball cap , he was not displaying any SIA accreditation ,we identified ourselves and I produced my warrant card and I said to the male(I will refer to this person as Male A) " what is the event?" to which he replied " it is a birthday party just kids no alcohol ", I replied "ok fine" , we then walked through the entrance unhindered as I believed that licensable activities were taking place at the venue and so entered under s180 of the Licensing Act 2003: Enables a constable to enter and search the premises where there is reasonable cause to believe that an offence under the Act has been, is being or is about to be committed. A constable exercising a power conferred by this section may, if necessary, use reasonable force.

The male then told another black male (Male B), f505, medium build wearing a black leather type jacket, jeans and combat coloured hat to "go find Eric and then asked us to follow this male up the iron stairs ", however I could hear music and loud voices coming from another entrance which led to an internal stairway and into an event space, I walked up the stairs and as I did so the loud voices and music became more apparent. When I reached the top and entered the event area it was clear the music was amplified and not background music , myself and Pc Minka Agyeman looked into the dance floor area where the teenagers were dancing and saw that there was a dj playing the music and he was talking to the crowd, there was also disco strobe lighting and smoke machine in operation. As we walked around Male A was continually trying to usher myself and Pc Minka Agyeman into the restaurant area which was empty . I continued to look around and looked behind the bar area to see if there was any alcohol present and only saw soft drinks and water. We walked back down the internal stairway into the yard area where we were approached by a black male (MaleC) ,f510, stocky build, black beard wearing grey tracksuit top and bottoms and had the hood up. I said to the Male C " who are you sir ?" he replied "uh" I again said " who are you?" the male then

Signature Witnessed by Signature:

Page 1 of 2

Continuation of Statement of:

turned and walked away and up the exterior iron staircase to the upper floor restaurant area before turning around and coming back down also in the company of Male A and Male B who pointed out that Male C was the person in charge though they did not confirm his name, we all then went upstairs to the restaurant area, as we entered the restaurant I stated "I take it Audrey isn't here" to which he mumbled a reply and asked us to take a seat to which we did. I then informed the MaleC that the venue does not have a licence and that regulated entertainment is taking place in the form of the dj led amplified music being played and for this to take place it required a temporary event notice or a premises licence to which neither was in place, both MaleA and MaleB stated that the venue was closing at 2300hrs and there was no alcohol, my colleague Pc Minka Agyeman then explained to the both male regarding regulated entertainment and the requirements of the licensing act to which MaleC stated "Doe has one he isn't around now", Pc Minka Agyeman explained that there was no TEN in place and asked "do you know when he did it?" to which MaleC stated "I don't know he is not around now", Male A said "its not loud the music is not loud" I replied "it is loud and its amplified I am not going to argue with you it is the law". Pc Minka Agyeman said to both MaleA and MaleC "do you know Mr Doe do you know his number?", to which MaleA said "he is not here", Pc Minka Agyeman said "perhaps you can give him a call and he can confirm if he has done any TENS", MaleA said "he is not in this country". I said to both MaleA and C "so who has hired the venue to you?", Male A said "its him" I said "who Eric?", Male A said "yes", I said "Eric not Audrey?", male A said "no Audrey", I said "is it Audrey or Eric as im confused", MaleA said "Audrey". Whilst this conversation was taking place I began to complete Form 694 Notification of offence for a breach of section 136 A person commits an offence if—

(a) he carries on or attempts to carry on a licensable activity on or from any premises otherwise than under and in accordance with an authorisation, or

(b) he knowingly allows a licensable activity to be so carried on.

This form was completed to ensure that a log of the visit and offences was kept. The males then all rapidly disappeared back down stairs and I continued with completing the form. MaleA returned and then phoned Audrey Straker and asked her to attend the venue to which she did at 2109hrs. I explained to Audrey that the venue had regulated entertainment taking place in the form of dj led amplified music without a licence or TEN in place, Audrey replied "there is no alcohol it's a private event" I said "it doesn't matter its regulated entertainment and at the moment you have an unlicensed music event taking place on your premises", Audrey replied "im going to end it now". I then explained to Audrey that I am not going to ask her to finish the event at that moment as if it is abruptly stopped then we will have 150 teenagers out on the street without transport who will then highly likely loiter in the area which may cause an increase in crime and anti-social behaviour. I was also aware that there have recently been some serious assaults nearby involving under 18's, and due to the busy time of the year there may not be sufficient officers available to deal with any incidents and that a safe dispersal would be better. Audrey stated that she was sorry that she was not at the venue but she had been at her nieces who had passed away. Pc Minka Agyeman explained the form 694 to Audrey and informed her that the matter would be reported to Southwark council licensing "and she signed acknowledging our visit". Pc Minka Agyeman said to Audrey "was this a ticketed event?" Audrey said "this was a private event that should finish at 10o'clock", Pc Minka Agyeman said "I mean did they need tickets to get in?", Audrey replied "no this is a private thing". Pc Minka Agyeman said "so it was invite only?" Audrey said "yes". We then left the restaurant as i walked out of the door there was a large group of around 15 young males stood and sat to the right on the metal platform, i immediately smelt the distinct ordour of cannabis, my previous experience of persons in possession of cannabis allows me as a Police Officer to identify the ordour of cannabis. The smell was clearly coming from the group however i could not identify any individual smoking. We then walked down the iron stairs and through the gates where we were meet by MaleC I said "how much was it to get in tonight and how many people?" to which he replied "£3 to get in and about 150 people", we then left the venue.

Witness Signature:

Signature Witnessed by Signature:

From: Kent Lounge [REDACTED]

Sent: Tuesday, November 4, 2025 4:48 PM

To: Heron, Andrew [REDACTED]

Subject: Re: Kent Restaurant and Lounge Ltd

Dear Andrew Heron,

Trust this email finds you well.

First and foremost, I would like to apologise genuinely for what happened on last Saturday.

I would never want to jeopardise the relationship I have and continue to build with Wesley and Mark over the past few months.

ESo, last Saturday a family member asked to hire our hall section for his daughters 17th birthday special event for her friends, school mates and family members. It wasn't an open invitation to anyone. And they've decided to use her birthday to raise money for her driving licence. So, they charged themselves £3 each, and on the night, her parents were at the door to collect the money.

The dad also happened to be an SIA Registered licenced door staff as well. He was at the door with two (2) of our SIA door staffs. The dad informed me that he even spoke with Mark on the night explaining it was his daughters birthday.

We hire out the hall lounge from 6pm - 10pm with NO ALCOHOL and Food on the night. There were no displayed alcohol or beverages. They were purely water and soft drinks only.

I had no intention of circumventing any licencing conditions. Since, we have taken over Kent Restaurant and Lounge, I have always seek permission for any event relating to alcohol, food and late night. I have genuinely believe hosting these kids between normal hours of 6pm - 10pm would not count as a breach, considering there were no alcohol on display or been sold, and finishing before 10:30pm.

I hold my hands up an apologies for technicalities and misunderstanding, and my miss judgement. Henceforth, this would never ever be repeated. I am genuinely sorry for the ill judgement. As I do not want to destroy my long term gain for a short term gain. I do not want anything that would affect and jeopardise my application I've work so hard for to reach to this point.

It will never be repeated, knowing that I can no longer hire out the hall event if there's No Alcohol on Sale until I have a licence.

I would like to continue with my application.

Thanks for your patience, understanding and consideration.

Sincerely,
Audrey Straker
Director
Kent Restaurant and Lounge Ltd